

Criminology Report

Case Title: **Matthew Aaron Davis: Alleged Systemic Discrimination, False Charges, and Civil Rights Violations**

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1. Background Information

- **Subject:** Matthew Aaron Davis

- **Birthplace:** Upstate New York

- **Residency:** Moved to Florida at age 19, residing in Zephyrhills, FL

- **Employment:** Pasco County Public Works (Started February 10, 2020, as Equipment Operator I, promoted to Equipment Operator II)

2. Chronological Events

****February 10, 2020 - Employment Start****

- **Event:** Matthew Aaron Davis began working for Pasco County Public Works as an Equipment Operator I.

- **Details:** Promoted to Equipment Operator II shortly after hiring.

****May 17, 2020 - Placed on Inactive Status****

- **Event:** Davis was placed on inactive status awaiting a hearing regarding his termination.

- **Details:** Issues and discrimination arose after his rapid promotion, causing resentment among colleagues.

****December 9-10, 2020 - Domestic Violence Incident****

- ****Event:**** Arrested on domestic violence charges.
- ****Details:**** Incarcerated from December 9, 2020, until December 10, 2020. During this time, his children were removed from his home. All charges were eventually dropped, but Davis was refused custody of his children.

****December 2021 - Permanent Custody Loss****

- ****Event:**** Permanent custody of his three children was taken from Davis.

****March 12-22, 2021 - Burglary, Fraud, and Dealing in Stolen Property Charges****

- ****Event:**** Arrested on charges of burglary, fraud, and dealing in stolen property.
- ****Details:**** Incarcerated from March 12, 2021, until March 22, 2021. Upon release, placed under a state attorney investigation. The victim, Mrs. Kass, refused to depose against Davis, claiming he was not at fault. No complaints filed to the sheriff from victim regarding Davis.
- ****Case Details:**** Burglary case filed with Pasco County Florida Clerk of Court as case number 512021CF001143CFAXES and with the police as report number 21-007010.

****Post-Inactive Status - Deal with Mrs. Kass****

- ****Event:**** Davis remodeled Mrs. Kass's home to increase its value for sale.
- ****Details:**** Agreed to remodel and repair the home in exchange for 5% of the sale price. The home sold for \$297,000, but Davis never received payment for his work. Took 90 days, working 10 hours each day by Davis and Christina Hills, to repair the home.

****July 29, 2022 - Shooting Incident****

- ****Event:**** Davis was shot by Stanley Dukett Jr., a felon.
- ****Details:**** Dukett Jr. was with Christina Hills, mother of Davis's children and co-defendant in the burglary case. Davis was charged with two counts of aggravated assault. Police claimed self-defense on Dukett Jr.'s part, despite stand your ground laws and Castle Doctrine laws.
- ****Case Details:**** Aggravated assault case filed as case number 512022CF003171CFAXES and with the police as report number 22-026166.

****July 30, 2022 - April 12, 2023 - Incarceration and Coerced Plea Deal****

- **Event:** Incarcerated following the shooting incident.

- **Details:** Coerced into signing a plea deal for time served (285 days) on both burglary and aggravated assault cases. Repeatedly requested to go to trial but was denied for 3 years on burglary case, informed that Pasco County would not allow it due to his employment status and potential media coverage.

Post-Conviction - Legal Representation and Access to Evidence Issues

- **Event:** Davis faced issues with legal representation and access to evidence.

- **Details:** Represented by 17 court-appointed lawyers. Ms. Michelle Bui refused to file an appeal in writing three times post-conviction. Several attempts to request police reports and video footage of the shooting were denied by the Pasco County Florida Sheriff records department.

Ongoing - Losses and Harassment

- **Event:** Davis experienced significant personal and financial losses and harassment.

- **Details:** Lost custody of his three children, his home, and all personal possessions, including a Dodge Ram 1500 King Cab and a Honda Accord. Reported gangstalking and harassment where friends and family were threatened with criminal activity, code violations, or arrest. People from different social groups were allegedly paid to monitor and stay close to him.

Throughout the Ordeal - FBI Reports

- **Event:** Reports made to the FBI every three months.

- **Details:** Davis updated and preserved information regularly.

June 2024 - Report of Electronic Harassment

- **Event:** Davis reported electronic harassment to the Pasco County Florida Sheriff.

- **Details:** Discovered his phone was being fed fake news, and federal government reports were being intercepted from federal government websites.

Allegations of Systemic Discrimination

- **Event:** Davis believes the actions against him were part of a systemic attempt to destroy his family and traffic his children.

- ****Details:**** Suspects discrimination from the Pasco County BOCC, who did not want a "Yankee" (Davis was born and raised in upstate NY) working for them. Lived in Zephyrhills, FL, a retirement community that discriminates against permanent resident families with children.

****3. Analysis of Legal Violations****

****Civil Rights Violations****

- ****Due Process (5th and 14th Amendments):**** Deprivation of liberty and property without due process, right to a fair trial.

- ****Equal Protection (14th Amendment):**** Discrimination based on origin and residency.

****Federal Laws****

- ****42 U.S. Code § 1983 - Civil Action for Deprivation of Rights:**** Misconduct by state officials.

- ****42 U.S. Code § 1985 - Conspiracy to Interfere with Civil Rights:**** Conspiracy to deprive Davis of his civil rights.

****State Laws****

- ****False Arrest and Imprisonment:**** Multiple arrests without substantial evidence.

- ****Malicious Prosecution:**** Criminal charges without probable cause.

- ****Abuse of Process:**** Misuse of legal processes.

****Employment Laws****

- ****Retaliation and Discrimination in Employment:**** Retaliation for legal issues, discrimination after promotion.

****Child Custody and Family Law Violations****

- ****Violation of Parental Rights:**** Unlawful removal of children.

****Criminal Laws****

- ****Gangstalking and Harassment:**** Coordinated efforts to harass and intimidate Davis.

****Freedom of Information****

- ****Denial of Access to Public Records:**** Violation of Florida's public records law.

****Human Trafficking Concerns****

- **Human Trafficking Laws:** Allegations of exploitation and coercion.

4. Conclusion

Matthew Aaron Davis's case involves a complex interplay of alleged civil rights violations, systemic discrimination, false charges, and personal and financial losses. The detailed chronological account highlights significant events and legal violations that have profoundly impacted Davis's life. Further legal analysis and representation are crucial to address and rectify these issues.

Timeline of Matthew Aaron Davis's Case

February 10, 2020: Davis starts employment with Pasco County Florida Public Works as an Equipment Operator Level 1. Later promoted to level 2.

May 17, 2020: Davis is placed on inactive status pending a hearing regarding his termination from Pasco County Public Works.

December 9-10, 2020: Davis is incarcerated on domestic violence charges. His children are removed from his home during this period. Charges are later dropped, but he is denied custody of his children.

March 12-22, 2021: Davis is arrested on charges of burglary, fraud, and dealing in stolen property. He is released pending a state attorney investigation. The victim, Mrs. Kass, declines to depose against him.

Case Filed: Pasco County Florida Clerk of Court Case Number: 512021CF001143CFAXES

Police Report Number: 21-007010

March 2021: First custody hearing was held where Davis was told to complete a number of classes. Davis presented his class certificates from classes taken earlier that year that where DCF approved and was informed that the court would not recognize them and to complete Pasco County Florida approved classes.

December 2021: Davis loses complete custody of his children

July 29, 2022: Davis is shot by Stanley Dukett Jr., a felon, who is accompanied by Christina Hills, the mother of Davis's children and his co-defendant in the burglary case.

Shooting Incident: Davis is charged with two counts of aggravated assault. Police allege Davis threatened Stanley Dukett Jr. and Christina Hills, leading to Dukett shooting Davis in self-defense.

Aggravated Assault Case Filed: Pasco County Florida Clerk of Court Case Number: 512022CF003171CFAXES

Police Report Number: 22-026166

July 30, 2022 - April 12, 2023: Davis is incarcerated following the shooting incident and violation of bond on burglary case.

April 12, 2023: Davis signs a plea deal for time served (285 days and \$6k) on all 5 felony charges under circumstances he describes as coerced.

Legal Representation Issues:

Davis is represented by multiple court-appointed lawyers throughout the case. To include four offices of court appointed council.

Ms. Michelle Bui, his lawyer post-conviction, refuses three times to file appeals in writing for his cases.

Evidence in regards to police reports, criminal history and video footage was withheld from Davis that was vital to cases.

Losses and Harassment:

Davis experiences significant personal and financial losses, including losing custody of his children, losing his home invested in on a rent-to-own basis, and losing all possessions including vehicles.

Legal Challenges:

Davis faces challenges accessing critical evidence such as police reports and video footage related to the shooting and burglary.

Allegations of gangstalking and harassment against Davis and his associates are reported during and after the legal proceedings to FBI.

FEDERAL CODE AND LAW VIOLATIONS DONE TO - MATTHEW AARON DAVIS

Civil Rights Violations

Due Process (5th and 14th Amendments)

Deprivation of Liberty and Property Without Due Process:

The repeated arrests, refusal to return custody of children despite dropped charges, coerced plea deal, and denial of trial could all constitute due process violations.

Right to a Fair Trial:

The alleged coercion into signing a plea deal and denial of the right to a trial violate the right to a fair trial.

Equal Protection (14th Amendment)

Discrimination:

Claims of discrimination due to being a "Yankee" and a resident in a community that discriminates against families with children could violate equal protection rights.

Federal Laws

42 U.S. Code § 1983 - Civil Action for Deprivation of Rights

State Officials Misconduct:

If state officials, including law enforcement and prosecutors, acted under color of state law to violate Davis's constitutional rights, a § 1983 claim could be brought against them.

42 U.S. Code § 1985 - Conspiracy to Interfere with Civil Rights

Conspiracy:

If there was a conspiracy to deprive Davis of his civil rights, such as through gangstalking, threats to friends and family, or coordinated harassment, a § 1985 claim could be applicable.

State Laws

Florida State Laws

False Arrest and Imprisonment:

The multiple arrests without substantial evidence and subsequent detentions could violate Florida state laws regarding false arrest and imprisonment.

Malicious Prosecution:

Initiating criminal charges without probable cause and with malice or for an improper purpose could be grounds for a malicious prosecution claim under Florida law.

Abuse of Process:

Misusing legal processes for ulterior motives, such as coercing plea deals or influencing employment status, could constitute abuse of process.

Employment Laws

Retaliation and Discrimination in Employment

Retaliation:

Placing Davis on inactive status and awaiting termination hearing could be construed as retaliation if linked to his legal issues and attempts to protect his rights.

Employment Discrimination:

If Davis faced discrimination at work due to his rapid promotion or other factors, it could violate employment discrimination laws.

Child Custody and Family Law Violations

Violation of Parental Rights

Unlawful Removal of Children:

The removal of children from Davis's custody without sufficient legal basis, especially after charges were dropped, could violate his parental rights.

Criminal Laws

Gangstalking and Harassment

Stalking and Harassment Laws:

Coordinated efforts to harass and intimidate Davis, including threats to friends and family and paying others to monitor him, could violate criminal laws against stalking and harassment.

Freedom of Information

Denial of Access to Public Records

Florida Sunshine Law:

Refusing to provide police reports and video footage might violate Florida's public records law, which ensures public access to government records.

Human Trafficking Concerns

Human Trafficking Laws

Exploitation and Coercion:

Allegations of systemic attempts to destroy Davis's family and potentially human traffic his children could fall under human trafficking laws if there is evidence of exploitation or coercion for personal gain.

Given the complexity and severity of these allegations, it's crucial to consult with legal professionals who can assess all aspects of the case and determine the appropriate legal actions to take. They can help identify all potential violations and ensure that all legal avenues are pursued to seek justice and compensation.